

HOUSE No. 1362

The Commonwealth of Massachusetts

PRESENTED BY:

Carole A. Fiola

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to defining invasive surgical procedures.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>1/16/2025</i>

HOUSE No. 1362

By Representative Fiola of Fall River, a petition (accompanied by bill, House, No. 1362) of Carole A. Fiola relative to defining certain invasive surgical procedures. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1177 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to defining invasive surgical procedures.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 112 Sections 66 to 73 of the General Laws is hereby amended by
2 inserting at the end of section 66B the following:

3 For the purposes of sections 66 to 73, inclusive and any rules or regulations promulgated
4 pursuant thereto, “invasive surgical procedures” shall be defined as any procedures which
5 structurally alter the human body by the incision or destruction or cutting of tissues. Invasive
6 surgical procedures also include the diagnostic or therapeutic treatment of conditions or disease
7 processes by any instruments causing localized alteration or transposition of live human tissue,
8 or surgically implanted artificial prosthetics, which include lasers, ultrasound, ionizing radiation,
9 scalpels, probes, and needles. The tissue can be cut, injected, burned, vaporized, frozen, sutured,
10 probed, or manipulated by closed reductions for major dislocations or fractures, or otherwise

11 altered by mechanical, thermal, light-based, electromagnetic, chemical means, or other means.
12 Invasive surgical procedures do not include the use of an epinephrine auto-injector to counteract
13 anaphylaxis.

14 SECTION 2. Nothing in this act shall be construed to restrict, limit or expand the current
15 scope of practice authorized under Chapter 112 and in effect upon passage of this act, of any
16 profession licensed under Chapter 112.